

26STCV12900 26STCV12900

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-18

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Case Number: 26STCV12900 Hearing Date: September 18, 2026 Dept: 400

MOTION

FOR ORDER

The Court tenders

the following tentative decision in the matter Jane Doe v. 1918 W Jefferson LLC, et al., Los Angeles County Superior Court case number 26STCV12900, set for hearing on September 18, 2026. Jane Doe (Plaintiff) moves for an order permitting her to maintain this action under the pseudonym "Jane Doe," and for the other plaintiffs to proceed as Does as well. 1918 W Jefferson LLC, et al. (collectively, Defendants) oppose the motion. The motion is denied.

Generally, the names of all parties to

a civil action must be included in the complaint. (Code Civ. Proc., § 422.40.)

Some parties' identities may be kept confidential because of the inherently sensitive nature of some proceedings as authorized by statute. (Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 110 (Santa Clara).) A trial court may also allow a plaintiff to proceed anonymously by court order. But it must first "conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access." (Id. at p. 111.) Where anonymity is not expressly permitted by statute, litigation by pseudonym should only occur rarely, protecting the public's right to access judicial proceedings. (Roe v. Smith (2025) 116 Cal.App.5th 227, 238.)

Here, Plaintiff identifies an interest

in protecting her anonymity: she is a minor plaintiff whose claims will involve

discussion of private matters such as her medical treatment. Plaintiff does not request that the entire action be sealed or the courtroom be closed to the public, only that she and her parents be allowed proceed anonymously. But she does additionally request that her identity remain unknown to Defendants. And as noted by the Court of Appeal, significant constitutional concerns are implicated where a plaintiff's identity is unknown to the defendant. (Santa Clara, supra, 82 Cal.App.5th at p. 110.)

Defendants object to the present motion on several grounds. First, they note that Plaintiff's initial complaint is defective. While she seeks to have further Doe plaintiffs proceed anonymously, they have not yet been named in the action. Second, they argue that Plaintiff has not identified an overriding interest. Plaintiff identifies no authority holding that minor status alone is a sufficient basis to proceed under a pseudonym. Indeed, Plaintiff does not argue that any personal information other than that required to demonstrate injury from a dog bite will be disclosed during these proceedings. Thus, the Court finds that Plaintiff has not identified an overriding interest in using a pseudonym. Accordingly, the motion is denied.

Conclusion:

The Court denies
Plaintiff's motion.